

25STCV36854 25STCV36854

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Case Number: 25STCV36854 Hearing Date: August 7, 2026 Dept: 224

Wenting Rohwer v. Labor Law PC et al.,

TENTATIVE RULING

Defendant Noel Harlow's motion to quash service of summons is DENIED. Plaintiff's request for sanctions under Code of Civil Procedure section 128.7 is DENIED. Defendant Harlow shall file a responsive pleading within the time provided by Code of Civil Procedure section 418.10, subdivision (b).

The Order to Show Cause RE Proof Of Service is discharged.

The Case Management Conference is continued to 9/24/26 at 9:00 a.m.

ANALYSIS

Introduction

On December 18, 2025, Plaintiff Wenting Rohwer filed this legal malpractice action against her former counsel, Defendants Labor Law PC and Noël Harlow, arising out of their prior representation of Plaintiff.

On March 25, 2026, Defendant Harlow filed the instant Motion to Quash Service of Summons.

On April 20, 2026, Plaintiff filed an opposition.

Legal Standard

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her" (Code Civ. Proc., § 418.10, subd. (a).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[The filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of

proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Motion to Quash

Reasonable Diligence

Harlow frames her motion under Code of Civil Procedure section 415.20, subdivision (a). That subdivision, which authorizes office substituted service without a showing of diligence, applies only to the entities and persons specified in sections 416.10, 416.20, 416.30, 416.40, and 416.50. Because Harlow is a natural person sued as an individual defendant, she falls within section 416.90, and the operative provision is section 415.20, subdivision (b). That subdivision permits substituted service, where the summons cannot with reasonable diligence be personally delivered, by leaving copies at the person's "dwelling house, usual place of abode, usual place of business, or usual mailing address," in the presence of a competent member of the household or a person apparently in charge of the office or place of business, at least 18 years of age and informed of the contents, followed by mailing. The Court analyzes the service under subdivision (b).

"[T]wo or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence and allow substituted service to be made." (Espindola v. Nunez (1988) 199 Cal.App.3d 1389, 1392, quoted in Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1391–1392; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 389; Board of Trustees of the Leland Stanford Junior University v. Ham (2013) 216

Cal.App.4th 330, 338–341 [five attempts on five different days constituted reasonable diligence under section 415.45].) Here, Plaintiff's server made five attempts, on five different days, at varying times. The contention that plaintiff was required also to attempt service at Harlow's residence is incorrect. Section 415.20, subdivision (b) states the permissible locations in the disjunctive, and a plaintiff who diligently attempts personal service at the defendant's usual place of business may effect substituted service there without also attempting the residence.

Harlow's reliance on the January 22, 2026 "subject moved" notation is likewise unpersuasive. That single, unattributed statement is contradicted by the three other substantive entries in plaintiff's own diligence declaration – January 21, February 2, and February 17 – each of which reflects that "subject resides" at the address. It is further contradicted by Harlow's own records, discussed below.

Finally, the assertion that the diligence declaration fails to distinguish between the two defendants by referring to "the subject" is immaterial. The Proof of Service of Summons expressly identifies the party served as "Noel Harlow" and checks the box for service "as an individual defendant."

Usual Place of Business

The premise that the Santa Monica office is not Harlow's place of business is contradicted by her own evidence. Here, Harlow's active California State Bar membership record lists 100 Wilshire Boulevard, Suite 700 as her address. Her email signature lists the same address. In fact, the caption of this very motion identifies 100 Wilshire Boulevard, Suite 700 as the business address of "Attorneys for Defendant ... Noel Harlow." (Opp., Exh. B.) Harlow's self-serving declaration that the address "is not my usual office location" is insufficient to rebut the evidence. (Harlow Decl., ¶ 2.) On this record, plaintiff has established by a preponderance of the evidence that 100 Wilshire Boulevard, Suite 700 is Harlow's "usual place of business" within the meaning of section 415.20, subdivision (b). Harlow's conclusory declaration, contradicted by her own public records and filings, does not rebut the presumption of proper service arising from the Proof of Service. (Evidence Code § 647.)

Person Apparently in Charge

Finally, Harlow's contention that the individual served was not "apparently in charge" misapprehends the governing standard. Substituted service does not require that the recipient be authorized to accept service, hold a supervisory position, or bear any particular relationship to the individual defendant. It requires only that the copies be left with a person apparently in charge of the office or place of business, who is informed of the general nature of the papers. (Code Civ. Proc., § 415.20, subd. (b); see *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1393 [gate guard was person "apparently in charge"].) The "apparently in charge" inquiry is assessed from the perspective of the process server. A front-desk or reception employee staffing the office where the defendant maintains her law practice ordinarily qualifies. The Proof of Service reflects that the documents were left with such an employee at Harlow's business address, that the individual's identity was confirmed, and that the individual was informed of the nature of the papers. (Opp., Exh. C.)

Sanctions

Plaintiff requests \$1,000 in sanctions under Code of Civil Procedure section 128.7, and alternatively asks the Court to issue an order to show cause.

A party seeking sanctions under section 128.7 must proceed by a separate, noticed motion and must comply with the statute's 21-day safe-harbor requirement, serving the motion on the opposing party and affording 21 days to withdraw or correct the challenged paper before filing the motion with the Court. (Code Civ. Proc., § 128.7, subd. (c)(1).) Plaintiff's request was embedded in her opposition brief rather than presented as a separate motion satisfying the safe-harbor procedure, and it is therefore procedurally improper.

The request is denied.

Conclusion

Defendant Noel Harlow's motion to quash service of summons is DENIED. Plaintiff's request for sanctions under Code of Civil Procedure section 128.7 is DENIED. Defendant Harlow shall file a responsive pleading within the time provided by Code of Civil Procedure section 418.10, subdivision (b).

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Defendant Harlow to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.